



GOLD MEDAL INJURY LAW

WASHINGTON

253-215-1271

7602 BRIDGEPORT WAY W, SUITE 3B
LAKEWOOD, WASHINGTON 98499

FAX: (877) 813-6042

NEVADA

702-304-7625

2001 S RAINBOW BLVD, SUITE 140
LAS VEGAS, NEVADA 89146

FAX: (702) 442-1852

{{TODAY_LONG}}

VIA FIRST CLASS MAIL AND EMAIL – PRIVILEGED SETTLEMENT COMMUNICATION POLICY LIMIT DEMAND

{{insurance2.insurer.name}}
Claim No.: {{insurance2.claimnumber}}
Attn: {{insurance2.adjuster.name}}
{{insurance2.adjuster.address1line1}}, {{insurance2.adjuster.address1line2}}
{{insurance2.adjuster.address1city}}, {{insurance2.adjuster.address1state}}
{{insurance2.adjuster.address1zip}}
F: {{insurance2.adjuster.fax1}}
E: {{insurance2.adjuster.email1}}

DEMAND PACKAGE

RE: Our Client(s): {{fullname}}, _____, and _____
Your Insured: {{insurance2.insured.name}}
Date of Accident: {{intake.incidentDate|longDate}}
Claim Number: {{insurance2.claimnumber}}
Policy Number: {{insurance2.policynumber}}

Dear Mr./Ms. {{insurance2.adjuster.lastname}},

Our client(s) suffered significant injuries as a direct result of your insured's negligence. In support of our client's/clients' claim(s) we submit herewith the various items of special damages. The medical specials for our client(s) are as follows:

{{fullname}}

Ambulance Bill	\$	x,xxx.xx	WILL SUPPLEMENT
Hospital Bills and Records	\$	x,xxx.xx	
Hospital ER Physician Bill	\$	x,xxx.xx	
Hospital Radiology Bill	\$	x,xxx.xx	
Pain Mgmt. Bills and Records	\$	x,xxx.xx	
Surgery Center Bills and Records	\$	x,xxx.xx	
Anesthesia Bills and Records	\$	x,xxx.xx	
Specialists Bills and Records	\$	x,xxx.xx	
MRI Bills and Records	\$	x,xxx.xx	
Chiropractor Bills and Records	\$	x,xxx.xx	
Pharmacy Bills	\$	x,xxx.xx	
TOTAL MEDICAL BILLS	\$	x,xxx.xx	

Pain Management Doctor's Future Estimates	\$	x,xxx.xx
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Chiropractor Doctor's Future Estimates		x,xxx.xx

TOTAL FUTURE MEDICAL BILLS	\$	x,xxx.xx
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Enterprise Rental Car	\$	x,xxx.xx
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TOTAL EXPENSES	\$	x,xxx.xx
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ABC Casino 40 Hours at \$15.00/hour	\$	x,xxx.xx
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TOTAL WAGE LOSS	\$	x,xxx.xx
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John Doe Passenger (only include if additional plaintiff)

Ambulance Bill	\$	x,xxx.xx	WILL SUPPLEMENT
Hospital Bills and Records	\$	x,xxx.xx	
Hospital ER Physician Bill	\$	x,xxx.xx	
Hospital Radiology Bill	\$	x,xxx.xx	
Pain Mgmt. Bills and Records	\$	x,xxx.xx	
Surgery Center Bills and Records	\$	x,xxx.xx	
Anesthesia Bills and Records	\$	x,xxx.xx	
Specialists Bills and Records	\$	x,xxx.xx	
MRI Bills and Records	\$	x,xxx.xx	
Chiropractor Bills and Records	\$	x,xxx.xx	
Pharmacy Bills	\$	x,xxx.xx	
TOTAL MEDICAL BILLS	\$	x,xxx.xx	

Pain Management Doctor's Future Estimates	\$	x,xxx.xx
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Chiropractor Doctor's Future Estimates		x,xxx.xx
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TOTAL FUTURE MEDICAL BILLS	\$	x,xxx.xx
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Enterprise Rental Car	\$	x,xxx.xx
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TOTAL EXPENSES	\$	x,xxx.xx
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ABC Casino 40 Hours at \$15.00/hour	\$	x,xxx.xx
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TOTAL WAGE LOSS	\$	x,xxx.xx
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THIS IS A FORMAL NOTICE OF {{fullname | capitalize}}'S, _____ AND _____'S REQUEST FOR AN IMMEDIATE TENDER OF YOUR INSURED'S FULL AUTOMOBILE LIABILITY LIMITS. **THIS IS THE ONLY OPPORTUNITY {{insurance2.insurer.name | capitalize}} WILL HAVE TO SETTLE THIS CLAIM FOR THE POLICY LIMITS AND OBTAIN A FULL RELEASE OF ALL CLAIMS BY MY CLIENT(S) AGAINST YOUR INSURED.** THEREAFTER, MY CLIENT(S) WILL BE FORCED TO SUE YOUR INSURED IN DISTRICT COURT FOR THE FULL EXTENT OF HIS/HER/THEIR DAMAGES.

Please be advised that due to the nature and extent of the injuries incurred by our client(s), we are hereby **demanding the policy limits** as full and final settlement conditional upon your providing of a copy of your insured's policy declaration sheet. This demand is also contingent on your representation that there is no other insurance coverage covering either the owner or the driver of the vehicle.

Please also verify the payment of all property damage and/or loss of use expenses.

If this matter can be resolved within 30 days from the date of this letter, we will recommend to our client(s) that he/she/they accept your client's offer of settlement. Should we not be able to agree on this, our client(s) will have no choice but to proceed with the appropriate civil litigation against your insured wherein he/she/they will seek a judgment for the full amount of his/her/their damages, thereby subjecting your company to a first party action for bad-faith for failure to settle a claim within policy limits when presented with a reasonable opportunity to do so. We look forward to your prompt response.

Your acceptance of this demand must be received, in writing, **within 30 days from the date of this letter**, or this offer is withdrawn.

Very Truly Yours,

{{ATTORNEY_NAME}}, ESQ.
{{FIRM_NAME}}

AS/ _____

EXHIBITS:

1. Police Report
2. Repair Estimate
3. Photos
4. Medical Records and Bills
5. Wage Loss
6. Rental Reimbursement

AFFIDAVIT OF INSURANCE COVERAGE



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I, **{{insurance2.deftdriver.name}}**, hereby swear under penalty of perjury, that the following assertions are true of my own personal knowledge:

1. I was involved in a motor vehicle accident with **{{fullname}}** on **{{intake.incidentDate|longDate}}**.
2. I declare that I have made a diligent search and that, to the best of my knowledge:
 - This is a complete list of all insurance policies (umbrella, excess, or otherwise) providing coverage to this incident:

 - That at the time of incident I was not acting in the course or scope of any agency, employment, joint venture or joint enterprise; I was not acting on behalf of or doing any errand for anyone or any entity or corporation; I was not the alter ego of anyone or any entity or corporation involved in this incident or connected with this incident in anyway whatsoever.
 - I hereby affirm that I do not have sufficient personal assets to satisfy any significant judgment against me in excess of my policy limits with **{{insurance2.insurer.name}}**.
3. I understand that the other parties are expressly relying upon these representations as being the complete truth in deciding whether to settle.

Printed Name: **{{insurance2.deftdriver.name}}** Date: _____

STATE OF: _____)
COUNTY OF: _____) ss:

DATED _____.

Notary Public

AFFIDAVIT OF {{ insurance2.ownervehicle.name | capitalize }}



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NOW COMES, **{{ insurance2.ownervehicle.name | capitalize }}**, affiant herein, who after being duly sworn before the undersigned officer, who is duly authorized by law to administer oaths, gives this affidavit based on his personal knowledge that the following information set forth herein is true and correct:

1. I am over the age of eighteen years and possess the capacity to testify to the facts herein based on my personal knowledge.
2. On **{{intake.incidentDate| longDate}}**, I was the owner of a **{{insurance2.colorofdefendantsvehicle}}** **{{insurance2.dyear}}** **{{insurance2.dmake}}** **{{insurance2.dmodel}}**. The vehicle was operated by **{{insurance2.deftdriver.name}}**, who was involved in a motor vehicle collision.
3. At the time of the motor vehicle collision, my vehicle was not acting in the course and scope of my employment.
4. At the time of the motor vehicle collision, my vehicle was covered under one motor vehicle insurance policy, **{{insurance2.insurer.name}}**, Policy Number **{{insurance2.policynumber}}**, which provided **{{insurance2.3ppolicylimits}}** in bodily injury liability insurance.
5. I have performed a diligent search for additional insurance coverage and I have concluded that I do not have, and did not have, any other insurance policy that would provide insurance coverage for any claimant involved in the **{{intake.incidentDate| longDate}}** motor vehicle collision.
6. Furthermore, I am not covered by any other applicable insurance policy in the name of my spouse, my employer or any other resident relative that would provide insurance coverage for claimants involved in the **{{intake.incidentDate| longDate}}** motor vehicle collision.
7. Further, I did not have an umbrella insurance policy that would provide insurance coverage for **{{fullname}}** or **his/her/their** **{{insurance2.colorofplaintiffsvehicle}}** **{{insurance2.yearofplaintiffsvehicle}}** **{{insurance2.makeofplaintiffsvehicle}}** **{{insurance2.modelofplaintiffsvehicle}}** or any claimant involved in my **{{intake.incidentDate| longDate}}** motor vehicle collision in effect.
8. Furthermore, my homeowner's insurance policy did not and does not provide insurance coverage that would cover **{{fullname}}** nor any claimant involved in the **{{intake.incidentDate| longDate}}** motor vehicle collision.
9. My net worth does not exceed **\$(def net worth)**.
10. I have read this affidavit and it fully and accurately represents my insurance coverage for the **{{intake.incidentDate| longDate}}** motor vehicle collision and my net worth as of the date of this affidavit.
11. That aside from the foregoing insurance policy, I do not have other assets or resources available to compensate the parties injured in the foregoing accident.

{{insurance2.ownervehicle.name}}

State of: _____
County of: _____

Sworn to and subscribed before me this the _____ day of _____, 20____.

Notary Public in and for said County and State
My Commission Expires _____